BLANKET PURCHASE AGREEMENT (BPA) TERMS AND CONDITIONS
MISSION AND INSTALLATION CONTRACTING COMMAND – FT. BLISS, TX
RENTAL OF PORTABLE LATRINES AND HAND-WASHING STATIONS

1. Description of Agreement: This Blanket Purchase Agreement (BPA) is established under Revolutionary FAR Overhaul (RFO) 12.201-1(e)(3) and RFO FAR Part 12 as a simplified method for acquiring recurring commercial portable sanitation services. This BPA covers the rental, delivery, placement, setup, anchoring, scheduled servicing, cleaning, sanitization, restocking, in-field relocation, emergency servicing, spill prevention, spill remediation, removal, and pickup of portable latrines and standalone portable hand-washing stations at Fort Bliss, Texas, and associated training areas and ranges in Texas and New Mexico identified in individual BPA calls. The Supplier shall furnish all services described in the Performance Work Statement (PWS) and in individual BPA calls, when requested by a warranted Contracting Officer (KO) during the BPA ordering period and within the aggregate ceiling amount.

This BPA **does not guarantee any minimum quantity of services or minimum expenditure.**

2. Ordering Period: The BPA ordering period is **23 November 2026 through 22 November 2031**, for a total duration of five (5) years (unless adjusted at BPA establishment to preserve a full five-year ordering period). The BPA will be reviewed at least annually by the Contracting Officer (including statutory price adjustment reviews for updated Department of Labor Service Contract Labor Standards [SCLS] Wage Determinations in accordance with FAR 52.222-41 and FAR 52.222-43) and may be terminated at any time if determined necessary by the Contracting Officer.

3. Termination: Either party may terminate this BPA upon **30 days' written notice** to the other party. Termination of the BPA does not automatically cancel an active, funded BPA call already in progress unless separately terminated by the Contracting Officer in accordance with FAR 52.212-4.

4. Government Obligation & Authority: Only a warranted Contracting Officer may issue BPA calls, modify BPA call quantities, or obligate the Government. The Government is obligated only to the extent of authorized, funded BPA calls issued by a warranted Contracting Officer. **Purchases or service requests (including un-funded relocations or emergency services) made by unauthorized personnel outside the funded quantities on an active BPA call constitute unauthorized commitments, and the vendor assumes the risk of non-payment.**

5. Rotational Schedule and Call Placement Procedures:

5.1. Establishment of Five-Vendor Rotational Schedule: The Government intends to establish five (5) Firm-Fixed-Price BPAs (Vendor 1 through Vendor 5). To ensure that

all awarded BPA holders have an equitable opportunity to receive BPA call awards throughout the five-year ordering period, the Contracting Officer will place BPA calls using a **sequential rotational schedule** among all active BPA holders.

5.2. Initial Rotational Order: Upon BPA establishment, the five (5) awarded BPA holders will be placed into the initial rotational sequence (Vendor 1, Vendor 2, Vendor 3, Vendor 4, and Vendor 5) ranked from lowest to fifth-lowest Total Evaluated Price (TEP) determined at BPA establishment. The first BPA call requirement will be offered to Vendor 1, the second BPA call requirement to Vendor 2, the third to Vendor 3, the fourth to Vendor 4, and the fifth to Vendor 5, after which the rotation repeats continuously (Vendor 1 through Vendor 5) for the duration of the five-year ordering period.

5.3. Rotational Call Issuance and Fixed Unit Pricing: When a requirement arises, the Contracting Officer will issue a rotational BPA Call Order / Request for Confirmation with the PWS and call-specific requirement schedule to the next BPA holder in the rotation. Each BPA call will identify:

- Required services and applicable PWS performance standards
- Required number and type of portable latrines and portable hand-wash stations
- Delivery and pickup location(s) and 8-digit Military Grid Reference System (MGRS) grid coordinates
- Call performance period and required delivery date and time
- Scheduled servicing frequency and total scheduled service visits
- Pre-obligated quantities (if any) for directed in-field relocations and after-hours/weekend/holiday emergency services
- Call acceptance / confirmation deadline

All rotational BPA calls will be priced strictly using the **firm-fixed unit prices** established in the awarded BPA holder's Pricing Schedule (or any voluntary downward price discount offered by the holder). BPA holders may not exceed their established BPA unit prices on any call.

5.4. Vendor Response, Declination, and Rotation Advancement Rules: The designated rotational BPA holder must respond to each BPA call notice within the specified deadline with either a written acceptance/confirmation or a written declination. Urgent operational requirements may require abbreviated response times as short as **seventy-two (72) hours**. If the designated rotational vendor declines a call, fails to respond by the deadline, or lacks available equipment capacity to fulfill the entire call requirement (such as during concurrent large-scale brigade/division exercises), the Contracting Officer will advance the rotation and issue the call (or the remaining excess quantity) to the next BPA holder in the rotational schedule (Vendor N+1). Failure to

respond to **three (3)** BPA call notices may result in removal from the rotational schedule or termination of the BPA.

5.5. Annual Review & Continuing BPA Relationship: The Government will consider documented field sanitation performance, on-time delivery, responsiveness to rotational calls, and compliance with BPA terms when conducting annual BPA reviews to determine whether to continue the BPA relationship. If additional competition is required by statute/regulation or urgent mission needs exceed the capacity of the BPA-holder pool, the Contracting Officer reserves the right to solicit all BPA holders or other commercial sources.

6. BPA Limitations: The aggregate ceiling for all BPAs established under this solicitation is **$6,500,000.00**.

7. Purchase Limitation: Individual BPA calls shall not exceed **$1,000,000.00**.

8. Qualified Source of Supply and Performance Standards: The Government establishes BPAs only with small-business vendors determined to be qualified, responsible sources. Vendors must maintain qualification status (including active SAM.gov registration) and perform all BPA calls satisfactorily in accordance with the PWS and Performance Requirements Summary (PRS). Deficient performance, misrepresentation, environmental violations, or failure to comply with BPA terms may result in skipping the vendor in the rotation, exclusion from future calls, or termination of the BPA.

9. Call Performance: A vendor who performs deficiently on one or more BPA calls may be excluded from further rotational calls unless the Contracting Officer determines the circumstances were beyond the vendor's control.

10. Delivery Tickets: Each service visit, delivery, in-field relocation, maintenance action, emergency service, or pickup shall be documented by a delivery or service ticket containing at a minimum:

a. Supplier name;

b. BPA number;

c. Date of purchase or service;

d. BPA call number;

e. Itemized description of services furnished (by CLIN);

f. Quantity, unit of issue (Days or Each), established BPA unit price, and extended price;

g. Date of delivery, service, relocation, or pickup;

h. Location of service (Building number or 8-digit MGRS grid coordinate);

i. Time of service; and

j. Printed name and signature of Government receiving official (or, for routine mid-exercise servicing at unmanned range grid coordinates where no Government personnel are physically present, the technician's signed/dated entry on the interior unit service log sticker [Attachment 1] plus GPS/date-stamped service ticket verification submitted with the Monthly Service Report).

11. Invoices and Monthly Reporting Sequence:

In accordance with PWS Sections 5.8.3 and 5.8.4, the Contractor shall submit a **Monthly Service Report** to the Contracting Officer's Representative (COR) no later than the **5th calendar day of each month** following service. Following COR verification and acceptance of the Monthly Service Report and signed delivery/service tickets, a summary invoice must be submitted monthly (no later than the **10th calendar day of the month**) or upon BPA call expiration. The invoice shall:

a. List all rental days, scheduled service visits, relocations, and emergency services performed during the billing period;

b. Show total invoice value matching the funded BPA call CLINs;

c. Include attached electronic copies of all signed delivery/service tickets and the COR-accepted Monthly Service Report;

d. Include required labor/service documentation;

e. Clearly state the BPA number and the specific BPA call number;

f. Be submitted electronically through Wide Area Workflow (WAWF / PIEE) (https://piee.eb.mil) in accordance with DFARS 252.232-7003 and DFARS 252.232-7006; and

g. Include Unique Entity ID (UEI) and Taxpayer Identification Number (TIN) information.

12. Payment: Payment will be processed after receipt of a complete and correct invoice in WAWF/PIEE and Government acceptance of services. All payments will be made in accordance with the terms of this BPA and the corresponding BPA call contract. Standard payment terms are **Net 30** unless accelerated small-business payment provisions (FAR 52.232-40) apply.

13. Correspondence and COR Limitations: All requests for contractual direction, changes, extensions, substitutions, deviations, equitable adjustments, or interpretation of BPA or call terms shall be submitted in writing to the Contracting Officer. Technical performance matters may be coordinated with the Contracting Officer’s Representative (COR), when appointed. **The COR has no authority to change price, quantity, quality, delivery, period of performance, or any other term of the BPA or BPA call, nor to obligate funds.** The COR may direct in-field relocations (CLINs 0005/0006) or emergency services (CLIN 0007) ONLY within the funded quantities already obligated

on the active BPA call by the Contracting Officer. Correspondence related to a specific call shall include the BPA call number.

14. Additional Operational Requirements:

14.1. Mobilization Requirements: The Supplier must demonstrate and maintain the ability to mobilize and begin performance promptly upon issuance of a rotational BPA call (including delivering, setting up, and anchoring units NLT 0800 hours on the first day of the call period, and responding within 72 hours for urgent call requirements), consistent with the PWS and evaluation criteria in FAR 52.212-2.

14.2. Installation Access Requirements: Contractor and subcontractor personnel must comply with all Fort Bliss access requirements, including NCIC-III and TSDB background vetting at the Fort Bliss Visitor Control Center (VCC), wearing conspicuous company photo identification badges, completing AT Level I and iWATCH training within five (5) calendar days, and complying with commercial vehicle registration, insurance, and inspection procedures.

14.3. Environmental, Off-Post Waste Disposal, Spill Prevention Plan, and Spill Remediation Plan Requirements: All human waste (septage) and gray water shall be transported off-installation in sealed, leak-proof vacuum trucks and disposed of strictly at state-permitted municipal or commercial wastewater treatment facilities in compliance with Federal (40 CFR Part 503), State (Texas [TCEQ] and New Mexico [NMED]), local, and Fort Bliss (AR 200-1) environmental regulations. Within **fifteen (15) calendar days after BPA establishment**, the Supplier shall submit both a written **Spill Prevention Plan** and a written **Spill Remediation Plan** to the KO and COR. All Contractor service vehicles shall carry complete spill-containment and soil/surface remediation kits and cab-accessible Chemical Safety Data Sheets (SDS). Any spill, regardless of size, shall be reported telephonically within one (1) hour, followed by a written Spill Incident and Remediation Completion Report within twenty-four (24) hours, and 100% contained, disinfected, excavated/remediated, and restored at the Supplier's sole expense.

14.4. Weather, High-Wind Anchoring, & Emergency Conditions: All emplaced portable latrines and hand-wash stations shall be staked/anchored to withstand wind gusts up to 45 MPH (PWS 5.2.1.1). The Supplier shall maintain capability to perform services during adverse weather or emergency conditions (and upright, re-anchor, re-sanitize, and remediate any wind-tipped units within 24–48 hours at no additional cost to the Government) unless otherwise directed by the Contracting Officer.

15. Terms and Conditions of Blanket Purchase Agreement: This BPA incorporates the following provisions and clauses by reference with the same force and effect as if provided in full text. Full text is available upon request or electronically at https://www.acquisition.gov.

CLAUSES INCORPORATED BY REFERENCE

FAR 52.202-1	Definitions	JUN 2020
FAR 52.203-6 Alt I	Restrictions on Subcontractor Sales to the Government — Alternate I	NOV 2021
FAR 52.203-12	Limitation on Payments to Influence Certain Federal Transactions	JUN 2020
FAR 52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
FAR 52.204-7	System for Award Management	NOV 2024
FAR 52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
FAR 52.204-13	System for Award Management Maintenance	OCT 2018
FAR 52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
FAR 52.204-19	Incorporation by Reference of Representations and Certifications	DEC 2014
FAR 52.209-2	Prohibition on Contracting with Inverted Domestic Corporations—Representation	NOV 2015
FAR 52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment	JAN 2025
FAR 52.209-7	Information Regarding Responsibility Matters	OCT 2018
FAR 52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
FAR 52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	FEB 2016
FAR 52.212-1	Instructions to Offerors — Commercial Products and Commercial Services (Deviation 2026-O0038)	SEP 2023 / RFO 2026
FAR 52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services	NOV 2023
FAR 52.219-6	Notice of Total Small Business Set-Aside	NOV 2020
FAR 52.219-8	Utilization of Small Business Concerns	JAN 2025
FAR 52.219-14	Limitations on Subcontracting	OCT 2022 / DEV
FAR 52.219-28	Post-Award Small Business Program Rerepresentation	JAN 2025
FAR 52.222-3	Convict Labor	JUN 2003
FAR 52.222-19	Child Labor — Cooperation with Authorities and Remedies	JAN 2025

FAR 52.222-35	Equal Opportunity for Veterans	JUN 2020
FAR 52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
FAR 52.222-37	Employment Reports on Veterans	JUN 2020
FAR 52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
FAR 52.222-41	Service Contract Labor Standards	AUG 2018
FAR 52.222-43	Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts)	AUG 2018
FAR 52.222-50	Combating Trafficking in Persons	OCT 2025
FAR 52.223-3	Hazardous Material Identification and Material Safety Data	FEB 2021
FAR 52.232-33	Payment by Electronic Funds Transfer—System for Award Management	OCT 2018
FAR 52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
FAR 52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
FAR 52.233-1	Disputes	MAY 2014
FAR 52.233-3	Protest After Award	AUG 1996
FAR 52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
FAR 52.242-13	Bankruptcy	JUL 1995
FAR 52.246-4	Inspection of Services—Fixed-Price	AUG 1996
DFARS 252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
DFARS 252.203-7002	Requirement to Inform Employees of Whistleblower Rights	JAN 2023
DFARS 252.204-7003	Control of Government Personnel Work Product	APR 1992
DFARS 252.204-7004	Antiterrorism Awareness Training for Contractors	FEB 2026
DFARS 252.209-7004	Subcontracting With Firms That Are Owned or Controlled by the Government of a Country That Is a State Sponsor of Terrorism	FEB 2026
DFARS 252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018

DFARS 252.232-7006	Wide Area Workflow Payment Instructions	JAN 2023
DFARS 252.232-7010	Levies on Contract Payments	DEC 2006
DFARS 252.243-7002	Requests for Equitable Adjustment	DEC 2022
DFARS 252.247-7023	Transportation of Supplies by Sea	OCT 2024

PROVISIONS AND CLAUSES INCORPORATED BY FULL TEXT

52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021 / DEVIATION 2026-O0038)

(a) **Basis for BPA Establishment:** The Government will establish five (5) Multiple-Award Blanket Purchase Agreements (BPAs) resulting from this solicitation with the responsible small-business offerors whose quotations conforming to the solicitation are determined **Technically Acceptable** (with **Acceptable or Neutral Past Performance**) and offer the **lowest Total Evaluated Prices (TEP)** determined complete, balanced, and fair and reasonable. The following factors shall be used to evaluate quotations:

(i) Technical Capability of the Services Offered to Meet the Government Requirement (Acceptable / Unacceptable):

a. The Offeror shall submit a five (5) page Technical Capability narrative describing how it will provide, deliver, set up, anchor against 45 MPH winds, service, clean, sanitize, restock, relocate within 24 hours, respond to 24/7 emergencies within 24 hours, execute its Spill Prevention Plan and Spill Remediation Plan, dispose of waste off-post at permitted facilities, and remove portable latrines and standalone hand-wash stations in accordance with the PWS.

b. The Offeror must provide at least **two (2) examples of recent and relevant experience** performing portable sanitation, portable latrine, hand-wash station, and waste-removal services within the **last three (3) years** prior to solicitation issuance (including first-tier subcontractor experience when supported by a signed Teaming Agreement / Letter of Commitment compliant with FAR 52.219-14).

c. The Offeror shall include the mandatory excluded technical attachments: **(1) Draft Safety Plan** (PWS 1.13), **(2) Chemical Safety Data Sheets (SDS)** (PWS 5.8.1), and **(3) First-Tier Subcontractor Commitment Package** (if applicable), plus the commitment statement to provide a written **Quality Control Plan (QCP)** within 30 days after BPA establishment and a written **Spill Prevention Plan and Spill Remediation Plan** within 15 days after BPA establishment.

(ii) Past Performance (Acceptable / Unacceptable / Neutral):

a. Evaluated based on recorded past performance within the **last three (3) years** demonstrating the offeror's history of delivering and servicing portable latrines and hand-wash stations in a timely, sanitary manner. An offeror without a record of relevant past performance within the last three (3) years or for whom information on past performance is not available will not be evaluated favorably or unfavorably on past performance and will receive a **Neutral (Acceptable)** rating.

(iii) Price:

a. Total Evaluated Price (TEP) & Rotational Ranking: The Government will multiply each offeror's proposed unit price by the Evaluation-Only Estimated Annual Quantities in Section 6 of the Solicitation to calculate a Total Evaluated Price (TEP). The Government will assess the prices of all technically acceptable quotations to determine whether they are complete, balanced, and fair and reasonable. Five (5) BPAs will be established with the technically acceptable, responsible offerors submitting the five (5) lowest Total Evaluated Prices (Vendor 1 through Vendor 5), which will also establish the initial rotational call schedule under Section 5 of this BPA.

b. Reasonableness: The existence of adequate price competition is expected to support a determination of reasonableness; a price is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business.

c. Completeness: Completeness is compliance of the quoter with the Pricing Schedule instructions in Addendum to FAR Provision 52.212-1 (proposing a unit price for all twenty-eight (28) priced SLINs (0001AA through 0007AD).).

d. Unbalanced Pricing: Exists when, despite an acceptable Total Evaluated Price, the price of one or more contract line items is significantly overstated or understated as indicated by the application of price analysis techniques. Quotations determined to be materially unbalanced may be rejected if the lack of balance poses a significant risk to the Government.

(b) **Written Notice of BPA Establishment:** A written notice of BPA establishment furnished to the successful offeror(s) shall establish the Blanket Purchase Agreement. Binding fiscal obligations arise only upon issuance of funded BPA calls by a warranted Contracting Officer.

(End of provision)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025 / RFO DEVIATION 2026-O0038)

(a) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (a) if this contract/BPA call was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after

final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(b)(1) *Applicable Commercial Clauses and Subcontract Flow-Downs:* The Contractor shall comply with the following FAR clauses applicable to commercial services under this BPA and flow down those clauses required for subcontracts for commercial products or commercial services:

- (i) **52.203-13**, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).
- (ii) **52.203-17**, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).
- (iii) **52.203-19**, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017).
- (iv) **52.204-23**, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (v) **52.204-25**, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (vi) **52.209-6**, Protecting the Government’s Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment (JAN 2025).
- (vii) **52.219-6**, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- (viii) **52.219-8**, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).
- (ix) **52.219-14**, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s)
- (x) **52.219-28**, Post-Award Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- (xi) **52.222-3**, Convict Labor (JUN 2003) (E.O. 11755).

- (xii) **52.222-19**, Child Labor—Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).
- (xiii) **52.222-21**, Prohibition of Segregated Facilities (APR 2015).
- (xiv) **52.222-26**, Equal Opportunity (SEP 2016) (E.O. 11246).
- (xv) **52.222-35**, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- (xvi) **52.222-36**, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- (xvii) **52.222-37**, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- (xviii) **52.222-40**, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- (xix) **52.222-41**, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67)
- (xx) **52.222-43**, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- (xxi) **52.222-50**, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- (xxii) **52.222-54**, Employment Eligibility Verification (MAY 2022) (E.O. 12989).
- (xxiii) **52.222-55**, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- (xxiv) **52.222-62**, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- (xxv) **52.232-33**, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).
- (xxvi) **52.232-40**, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(2) While not required, the Contractor MAY include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	**HQ0490**
Issue By DoDAAC	**W911SG**
Admin DoDAAC	**W911SG**
Inspect By / Service Acceptor DoDAAC	**W911SG**
Service Approver (DoDAAC)	**W911SG**
Service Acceptor (DoDAAC)	**W911SG**

(End of clause)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from: **Mission and Installation Contracting Command – Fort Bliss (MICC–Fort Bliss), 111 Pershing Road, Fort Bliss, Texas 79916**.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address: https://www.acquisition.gov/.

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: https://www.acquisition.gov/.

(End of clause)

5152.233-4000 AMC-LEVEL PROTEST PROGRAM (NOV 2008) (LOCAL CLAUSE)

If you have complaints about this procurement, it is preferable that you first attempt to resolve those concerns with the responsible contracting officer. However, you can also protest to Headquarters, AMC. The HQ, AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the Government Accountability Office or other external forum. Contract awards or performances are suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. The AMC protest decision goal is to resolve protests within 20 working days from filing. To be timely, protests must be filed within the periods specified in FAR 33.103. If you want to file a protest under the AMC-Level Protest Program, the protest must request resolution under that program and be sent to the address below. All other agency-level protests should be sent to the contracting officer for resolution.

A Protest to HQ AMC shall be filed either by regular mail, email or fax at:

Fax: 256.450.8840 **E-mail:** usarmy.redstone.usamc.mbx.protests@army.mil **Address:** Headquarters, U.S. Army Materiel Command Office of Command Counsel–Deputy Command Counsel 4400 Martin Road, Rm: A6SE040.001 Redstone Arsenal, AL 35898-5000

The AMC-Level Protest procedures are found at: https://www.amc.army.mil/Contact-Us/AMC-Protest-Program/. If internet access is not available, contact the contracting officer or HQ, AMC to obtain the AMC-Level Protest Procedures.

(End of clause)